

AMENDMENT TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on December 28, 2021, effective January 1, 2022

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8	366, 366.3, 388, 391, 607(a)).....	17
9		

1 **Rule 3.670. Telephone appearance**

2
3 **(a) Policy favoring telephone appearances**

4
5 The intent of this rule is to promote uniformity in the practices and procedures
6 relating to telephone appearances in civil cases. To improve access to the courts
7 and reduce litigation costs, courts should permit parties, to the extent feasible, to
8 appear by telephone at appropriate conferences, hearings, and proceedings in civil
9 cases.

10
11 **(b) Application**

12
13 Subdivisions (c) through (i) of this rule are suspended from January 1, 2022, to July
14 1, 2023, during which time the provisions in rule 3.672 apply in their place. This
15 rule applies to all general civil cases as defined in rule 1.6 and to unlawful detainer
16 and probate proceedings.

17
18 *(Subd (b) amended effective January 1, 2022; previously repealed and adopted as subd (a)*
19 *effective July 1, 1998; previously relettered effective January 1, 2008; previously amended*
20 *effective January 1, 1999, January 1, 2001, January 1, 2003, and January 1, 2007.)*

21
22 **(c)–(q) *****

23
24 *Rule 3.670 amended effective January 1, 2022; adopted as rule 298 effective March 1, 1988;*
25 *previously amended and renumbered as rule 3.670 effective January 1, 2007; previously*
26 *amended effective January 1, 1989, July 1, 1998, January 1, 1999, July 1, 1999, January 1, 2001,*
27 *July 1, 2002, January 1, 2003, January 1, 2008, July 1, 2011, July 1, 2013, January 1, 2014,*
28 *January 1, 2016, January 1, 2019.*

29
30
31 **Rule 3.672. Remote proceedings**

32
33 **(a) Purpose**

34
35 The intent of this rule is to promote greater consistency in the practices and
36 procedures relating to remote appearances and proceedings in civil cases. To
37 improve access to the courts and reduce litigation costs, to the extent feasible courts
38 should permit parties to appear remotely at conferences, hearings, and proceedings
39 in civil cases consistent with Code of Civil Procedure section 367.75.

40
41 **(b) Application**

- 1 (1) This rule applies to all civil cases. Provisions that apply specifically to
2 juvenile dependency proceedings are set out in subdivision (i).
3
4 (2) Nothing in this rule limits a requirement or right established by statute or case
5 law to an appearance in one manner, either remote or in person, to the
6 exclusion of the other.
7
8 (3) Nothing in this rule modifies current rules, statutes, or case law regarding
9 confidentiality or access to confidential proceedings.

10
11 **(c) Definitions**

12
13 As used in this rule:

- 14
15 (1) “Civil case” is as defined in rule 1.6(3), including all cases except criminal
16 cases and petitions for habeas corpus, other than petitions for habeas corpus
17 under Welfare and Institutions Code section 5000 et seq., which are governed
18 by this rule.
19
20 (2) “Evidentiary hearing or trial” is any proceeding at which oral testimony may
21 be provided.
22
23 (3) “Oral testimony” is a spoken statement provided under oath and subject to
24 examination.
25
26 (4) “Party” is, except in (i), as defined in rule 1.6(15), meaning any person
27 appearing in an action and that person’s counsel, as well as any nonparty who
28 is subject to discovery in the action.
29
30 (5) “Proceeding” means a conference, hearing, or any other matter before the
31 court, including an evidentiary hearing or trial.
32
33 (6) “Remote appearance” or “appear remotely” means the appearance of a party
34 at a proceeding through the use of remote technology.
35
36 (7) “Remote proceeding” means a proceeding conducted in whole or in part
37 through the use of remote technology.
38
39 (8) “Remote technology” means technology that provides for the transmission of
40 video and audio signals or audio signals alone. This phrase is meant to be
41 interpreted broadly and includes a computer, tablet, telephone, cellphone, or
42 other electronic or communications device.
43

1 **(d) Court discretion to require in-person appearance**

2
3 Notwithstanding the other provisions of this rule and except as otherwise required
4 by law, the court may require a party to appear in person at a proceeding in any of
5 the following circumstances:
6

- 7 (1) If the court determines on a hearing-by-hearing basis that an in-person
8 appearance would materially assist in the determination of the proceeding or
9 in the effective management or resolution of the case.
10
11 (2) If the court does not have the technology to conduct the proceeding remotely,
12 or if the quality of the technology prevents the effective management or
13 resolution of the proceeding.
14
15 (3) If, at any time during a remote proceeding, the court determines that an in-
16 person appearance is necessary, the court may continue the matter and
17 require such an appearance. Such determination may be based on the factors
18 listed in Code of Civil Procedure section 367.75(b).
19

20 **(e) Local court rules for remote proceedings**

- 21
22 (1) Except for juvenile dependency cases, a court may by local rule prescribe
23 procedures for remote proceedings, so long as the procedures are consistent
24 with the requirements of Code of Civil Procedure section 367.75, posted on
25 the court's website, and include the following provisions:
26
27 (A) A requirement that notice of intent to appear remotely be given to the
28 court and to all parties or persons entitled to receive notice of the
29 proceedings;
30
31 (B) A clear description of the amount of notice required; and
32
33 (C) For evidentiary hearing and trials, an opportunity for parties to oppose
34 the remote proceedings.
35
36 (2) If local procedures include written notice, any mandatory Judicial Council
37 forms must be used.
38
39 (3) For juvenile dependency cases, a court may by local rule prescribe
40 procedures for remote proceedings as long as the procedures are posted on
41 the court's website and consistent with Code of Civil Procedure section
42 367.75 and subdivision (i).
43

1 (4) Notwithstanding the requirements of rule 10.613, courts may adopt or amend
2 a local rule under this subdivision for an effective date other than January 1
3 or July 1 and without a 45-day comment period if the court:

4
5 (A) Posts notice of the adoption of the new or amended rule prominently on
6 the court's website, along with a copy of the rule and the effective date
7 of the new or amended rule;

8
9 (B) Distributes the rule to the organizations identified in rule 10.613(g)(2)
10 on or before the effective date of the new rule or amendment; and

11
12 (C) Provides a copy of the rule to the Judicial Council.

13
14 No litigant's substantive rights may be prejudiced for failing to comply with
15 a rule adopted or amended under this paragraph until at least 20 days after the
16 rule change has been posted and distributed.

17
18 (5) Notwithstanding (1) and rule 10.613, any local court procedures consistent
19 with Code of Civil Procedure section 367.75 and posted on the court's
20 website may continue in effect until March 31, 2022, or until such earlier date
21 by which a court has adopted a local rule under (1)–(3).

22
23 (f) **Notice and waiver for duration of case**

24
25 (1) Notice for remote appearances for duration of case

26
27 At any time during a case, a party may provide notice to the court and all
28 other parties or persons who are entitled to receive notice of the proceedings
29 that the party intends to appear remotely for the duration of a case. Such
30 notice must be provided with at least as much advance notice as required in
31 (g), (h), or (i), or by local court rules or procedures.

32
33 (A) Notice process

34
35 Notice must be given either orally during a court proceeding or by
36 service on all other parties or persons who are entitled to receive notice
37 of the proceedings and filing with the court a *Notice of Remote*
38 *Appearance* (form RA-010). If any party appears in the case after this
39 notice has been given, form RA-010 must be served on that party.
40 Service may be by any means authorized by law.

41
42 (B) Court's local procedures
43

1 This notice does not exempt a party from following a court’s local
2 procedures, as posted on its website, for providing notice of intent to
3 appear remotely at a particular proceeding, if the court has such a
4 procedure.

5
6 (2) Waiver of Notice

7
8 At any time during a case, all parties to an action may stipulate to waive
9 notice of any other participants’ remote appearance. This stipulation may be
10 made orally during a court proceeding or in writing filed with the court.

11
12 (g) **Remote proceedings other than an evidentiary hearing or trial**

13
14 (1) Applicable rules

15
16 This subdivision applies to any proceeding other than an evidentiary hearing
17 or trial, unless one of the following applies:

18
19 (A) The court has applicable local procedures or local rules under (e);

20
21 (B) The proceeding is a juvenile dependency proceeding governed by (i);

22
23 (C) The person intending to appear remotely has provided a notice for
24 remote appearances for the duration of the case or all parties have
25 stipulated to a waiver of notice under (f);

26
27 (D) The court permits a party to appear remotely under (j)(2).

28
29 (2) Required notice

30
31 (A) Hearing with at least three court days’ notice

32
33 (i) Notice to appear remotely

34
35 A party choosing to appear remotely in a proceeding under this
36 subdivision for which a party gives or receives notice of the
37 proceeding at least three court days before the hearing date, must
38 provide notice of the party’s intent to appear remotely at least
39 two court days before the proceeding.

40
41 (ii) Notice process
42

1 Notice to the court must be given by filing a *Notice of Remote*
2 *Appearance* (form RA-010). Notice to the other parties may be
3 provided in writing, electronically, or orally in a way reasonably
4 calculated to ensure notice is received no later than two court
5 days before the proceeding.

6
7 (B) *Hearing with less than three court days' notice*

8
9 (i) *Notice by moving party*

10
11 a. *Notice to appear remotely*

12
13 A moving party or applicant choosing to appear remotely in
14 a proceeding under this subdivision for which a party gives
15 or receives notice of less than three court days must provide
16 notice of the party's intent to appear remotely at the same
17 time as providing notice of the application or other moving
18 papers.

19
20 b. *Notice process*

21
22 Notice to the court must be given by filing a *Notice of*
23 *Remote Appearance* (form RA-010). Notice to the other
24 parties may be provided in writing, electronically, or orally
25 in a way reasonably calculated to ensure notice is received
26 with notice of the moving papers.

27
28 (ii) *Notice by other parties*

29
30 a. *Notice to appear remotely*

31
32 Any party choosing to appear remotely at a hearing
33 governed by (B), other than an applicant or moving party,
34 must provide notice of their intent to appear remotely to the
35 court and all other parties that have appeared in the action,
36 no later than 2:00 p.m. on the court day before the
37 proceeding.

38
39 b. *Notice process*

40
41 The notice to the court may be given orally or in writing by
42 filing *Notice of Remote Appearance* (form RA-010). Notice
43 to the other parties may be in writing, electronically, or

1 orally in a way reasonably calculated to ensure notice is
2 received no later than 2:00 p.m. on the court day before the
3 proceeding.
4

5 (C) Proof of notice
6

7 A party may use Notice of Remote Appearance (form RA-010) to
8 provide proof to the court that notice to other parties was given.
9

10 (D) Delivery to courtroom
11

12 If required by local rule, a party must ensure a copy of any written
13 notice filed under (A) or (B) is received in the department in which the
14 proceeding is to be held.
15

16 **(h) Remote proceedings for an evidentiary hearing or trial**
17

18 (1) Court notice of remote proceeding
19

20 A court intending to conduct an evidentiary hearing or trial remotely must
21 provide notice by one of the following means:
22

23 (A) By providing notice to all parties who have appeared in the action or
24 who are entitled to receive notice of the proceedings, at least 10 court
25 days before the hearing or trial date, unless the hearing or trial is on less
26 than 10 court days' notice, in which case at least two court days' notice
27 of remote proceedings is required; or
28

29 (B) By local rule providing that certain evidentiary hearings or trials are to
30 be held remotely, so long as the court procedure includes a process for
31 self-represented parties to agree to their remote appearance and for
32 parties to show why remote appearances or testimony should not be
33 allowed.
34

35 (2) Party notice of remote proceeding
36

37 (A) Applicable rules
38

39 This subdivision applies to all evidentiary hearings and trials unless one
40 of the following applies:
41

42 (i) The court has applicable local procedures or local rules under (e);
43

1 (ii) The proceeding is a juvenile dependency proceeding governed by
2 (i);

3
4 (iii) The person intending to appear remotely has provided a notice
5 for remote appearances for the duration of the case or all parties
6 have stipulated to a waiver of notice under (f);

7
8 (iv) The court permits a party to appear remotely under (j)(2).

9
10 (B) Motion

11
12 The notice described in this subdivision serves as the motion by a party
13 under Code of Civil Procedure section 367.75(d).

14
15 (C) Hearings or trials with at least 15 court days' notice and small claims
16 trials

17
18 (i) Time of notice

19
20 A party choosing to appear remotely at a small claims trial or an
21 evidentiary hearing or trial for which a party gives or receives
22 notice of the proceeding at least 15 court days before the hearing
23 or trial date must provide notice of the party's intent to appear
24 remotely at least 10 court days before the hearing or trial.

25
26 (ii) Notice process

27
28 Notice to the court must be given by filing a *Notice of Remote*
29 *Appearance* (form RA-010). Notice to the other parties may be in
30 writing, electronically, or orally in a way reasonably calculated to
31 ensure notice is received at least 10 court days before the
32 proceeding. A party may use *Notice of Remote Appearance* (form
33 RA-010) to provide proof to the court that notice to other parties
34 was given.

35
36 (D) Hearings or trials held on less than 15 court days' notice

37
38 A party choosing to appear remotely in an evidentiary hearing or trial
39 for which a party gives or receives notice of the proceeding less than 15
40 court days before the hearing or trial date, including hearings on
41 restraining orders or protective orders, must provide notice of the
42 party's intent to appear remotely in one of the following ways:
43

1 (i) As provided in (g)(2)(B); or

2
3 (ii) By filing a *Notice of Remote Appearance* (form RA-010) and
4 providing notice to the other parties in writing, electronically, or
5 orally in a way reasonably calculated to ensure notice is received
6 at least five court days before the proceeding.

7
8 (3) *Opposition to remote proceedings*

9
10 (A) *Filing and serving opposition*

11
12 In response to notice of a remote proceeding for an evidentiary hearing
13 or trial, whether set by local rule or otherwise noticed under (h)(1) or
14 (2), or to obtain a court order for in-person appearance, a party may
15 make a showing to the court as to why a remote appearance or remote
16 testimony should not be allowed, by serving and filing an *Opposition to*
17 *Remote Proceedings at Evidentiary Hearing or Trial* (form RA-015)
18 by:

19
20 (i) At least five court days before the proceeding if for an
21 evidentiary hearing or trial for which a party gives or receives at
22 least 15 court days' notice; or

23
24 (ii) At least noon the court day before the proceeding if for an
25 evidentiary hearing or trial for which a party gives or receives
26 less than 15 court days' notice.

27
28 (iii) If required by local rule, a party must ensure a copy of any
29 opposition is received in the department in which the proceeding
30 is to be held.

31
32 (B) *Court determination on opposition*

33
34 In determining whether to conduct an evidentiary hearing or trial in
35 whole or in part through the use of remote technology over opposition,
36 the court must consider the factors in section 367.75(b) and (f), and any
37 limited access to technology or transportation asserted by a party. The
38 court may not require a party to appear through remote technology.

39
40 (i) **Remote proceedings in juvenile dependency**

41
42 (1) *General provisions*

- 1 (A) This subdivision applies to any juvenile dependency proceeding. A
2 court may adopt local rules as provided in (e) to prescribe procedures
3 for remote juvenile dependency proceedings.
4
5 (B) The definitions in (c) apply, except that, for purposes of this
6 subdivision, a “party” is any of the following persons and that person’s
7 counsel:
8
9 (i) A child or nonminor dependent subject to the proceeding;
10
11 (ii) Any parent, Indian custodian, or guardian of a child subject to the
12 proceeding;
13
14 (iii) The social worker who filed the petition to commence the
15 juvenile dependency proceedings on behalf of the county child
16 welfare department;
17
18 (iv) The tribe of an Indian child subject to the proceeding if the tribe
19 has intervened; and
20
21 (v) A de facto parent of a child subject to the proceeding to whom
22 the court has granted party status.
23
24 (C) This subdivision does not apply to a juvenile justice proceeding. The
25 provisions in (a)–(h) and (j)–(m) govern a remote appearance in a
26 juvenile justice proceeding.
27

28 (2) Conducting a remote proceeding
29

30 Any juvenile dependency proceeding may be conducted as a remote
31 proceeding, as long as the following conditions are met:
32

- 33 (A) The court provides an opportunity for any person authorized to be
34 present to request to appear remotely;
35
36 (B) All statutory confidentiality requirements applicable to a juvenile
37 dependency proceeding held in person apply equally to a remote
38 proceeding.
39
40 (C) The court does not require any party to appear remotely.
41

42 (3) Option to appear remotely
43

1 (A) If a proceeding is conducted as a remote proceeding, any person
2 entitled to be present under rule 5.530(b) may appear remotely without
3 submitting a request.

4
5 (B) Except as provided in (ii), any person entitled under rule 5.530(b) or
6 authorized by court order to be present at a proceeding may request to
7 appear remotely using any means, oral or written, that is reasonably
8 calculated to ensure receipt by the court no later than the time the case
9 is called for hearing.

10
11 (i) If the request is in writing, *Request to Appear Remotely—*
12 *Juvenile Dependency* (form RA-025) may be used.

13
14 (ii) A request for a remote appearance by a witness must be made in
15 writing by counsel for the party calling the witness or, if the party
16 does not have counsel, by the party, by filing the request with the
17 court and serving a copy of the request on counsel for all other
18 parties or, if a party does not have counsel, on the party, by any
19 means authorized by law reasonably calculated to ensure receipt
20 no later than close of business three court days before the
21 proceeding.

22
23 (4) *Request to compel physical presence*
24

25 Any party may ask the court to compel the physical presence of a witness or a
26 party by filing the request in writing with the court and serving a copy of the
27 request on counsel for each party by any means authorized by law reasonably
28 calculated to ensure receipt no later than close of business two court days
29 before the proceeding. *Request to Compel Physical Presence—Juvenile*
30 *Dependency* (form RA-030) may be used for this purpose.

31
32 (5) *Determination of request*
33

34 (A) The court must require a witness to appear in person unless all parties
35 to the proceeding have consented to the witness's remote appearance.

36
37 (B) The court may require any person to appear in person if the court
38 determines that:

39
40 (i) One or more of the factors listed in Code of Civil Procedure
41 section 367.75(b) or (f) or in this rule, including the person's
42 limited access to technology, requires the person's physical
43 presence;

(ii) The court cannot ensure that the person's remote appearance will have the privacy and security necessary to preserve the confidentiality of the proceeding; or

(iii) A remote appearance by the person is likely to cause undue prejudice to a party.

(C) The court must consider a person's ability to appear in person at a proceeding, including any limits to the person's access to transportation, before ordering the person to appear in person.

(i) Other rules regarding notice

(1) Any party, including a party that has given notice that it intends to appear remotely under (f)–(h) or a person authorized to appear remotely under (i), may choose to appear in person.

(2) Notwithstanding the other provisions of this rule, a party may ask the court for leave to appear remotely without the notice provided for under (f)–(h). The court may permit the party to appear remotely upon a finding of good cause, unforeseen circumstances, or that the remote appearance would promote access to justice.

(k) Remote appearance fees

(1) *Parties not charged fees*

Parties who, by statute, are not charged filing fees or fees for court services may not be charged a videoconference fee under Government Code section 70630.

(2) *Parties with fee waiver*

(A) When a party has received a fee waiver, that party may not be charged fees for remote appearances.

(B) To obtain remote appearance services without payment of a fee from a vendor or a court that provides such services, a party must advise the vendor or the court that they have received a fee waiver from the court. If a vendor requests, the party must transmit a copy of the order granting the fee waiver to the vendor.

(C) If a party, based on a fee waiver, receives remote appearance services under this rule without payment of a fee, the vendor or court that provides the remote appearance services has a lien on any judgment, including a judgment for costs, that the party may receive, in the amount of the fee that the party would have paid for the remote appearance. There is no charge for filing the lien.

(l) Vendor or platform

A court, by local rule, may designate the vendors or platforms that must be used for remote appearances or the location on its website where such information may be found.

(m) Court information on remote appearances

The court must publish notice online providing parties with the information necessary to appear remotely at proceedings in that court under this rule. The notice should include information regarding in which departments, types of proceedings, or types of cases the court has the technological capability to allow remote appearances, and the vendors or platforms that must be used, including whether there are limitations to using them concurrently.

Rule 3.672 adopted effective January 1, 2022.

Advisory Committee Comment

Subdivision (h). Nothing in this rule, including time frames provided in subdivision (h), is intended to preclude a court or party from discussing the use of remote appearances and testimony at any time during an action, including at case management conferences and status conferences.

Subdivision (k). Statutes currently provide that courts are not to charge fees to certain types of parties, such as governmental entities; representatives of tribes in cases covered by the Indian Child Welfare Act; and parties in certain types of cases, such as juvenile cases or actions to prevent domestic violence. This rule would preclude courts from charging videoconference fees to such parties as well.

Rule 5.9. Appearance by telephone

(a) Application

Subdivisions (b) through (d) of this rule are suspended from January 1, 2022, to July 1, 2023. During that time, the provisions in rule 3.672 apply in their place. This rule applies to all family law cases, except for actions for child support involving a local child support agency and cases governed by the Indian Child Welfare Act. Rule 5.324 governs telephone appearances in governmental child support cases. Rule 5.482(g) governs telephone appearances in cases governed by the Indian Child Welfare Act.

(Subd (a) amended effective January 1, 2022; previously amended effective January 1, 2021.)

(b)–(d) * * *

Rule 5.9 amended effective January 1, 2022; adopted effective January 1, 2013; previously amended effective January 1, 2021

Rule 5.324. Telephone appearance in title IV-D hearings and conferences

(a) Purpose

This rule is suspended from January 1, 2022, to July 1, 2023. During that time, the provisions in rule 3.672 apply in its place. This rule is intended to improve the administration of the high volume of title IV-D child support hearings and conferences. Participation by both parents is needed for fair and accurate child support orders. The opportunity to appear by telephone fosters parental participation.

(Subd (a) amended effective January 1, 2022.)

(b)–(k) * * *

Rule 5.324 amended effective January 1, 2022; adopted effective July 1, 2005; previously amended effective January 1, 2007, January 1, 2008, July 1, 2008, July 1, 2011, January 1, 2014, and January 1, 2017.

Rule 5.482. Proceedings after notice

(a)–(f) * * *

(g) Tribal appearance by telephone or other remote means

1 (1) In any proceeding governed by the Indian Child Welfare Act involving an
2 Indian child held between January 1, 2022, and June 30, 2023, the child's
3 tribe may appear by remote means at any proceeding as provided by the
4 applicable provisions of rule 3.672, and during that time, paragraph (2) is
5 suspended.

6
7 (2) In any proceeding governed by the Indian Child Welfare Act involving an
8 Indian child, the child's tribe may, on notification to the court, appear at any
9 hearing, including the detention hearing, by telephone or other computerized
10 remote means. The method of appearance may be determined by the court
11 consistent with court capacity and contractual obligations, and taking into
12 account the capacity of the tribe, as long as a method of effective remote
13 appearance and participation sufficient to allow the tribe to fully exercise its
14 rights is provided.

15
16 (3) No fee may be charged to ~~the~~ a tribe for ~~such~~ a telephonic or other remote
17 appearance.

18
19 *(Subd (g) amended effective January 1, 2022; adopted effective January 1, 2021.)*

20
21 *Rule 5.482 amended effective January 1, 2022; adopted effective January 1, 2008; previously*
22 *amended effective January 1, 2013, July 1, 2013, August 15, 2016, January 1, 2020, January 1,*
23 *2021.*

24
25
26 **Rule 5.531. Appearance by telephone (§ 388; Pen. Code, § 2625)**

27
28 **(a) Application**

29
30 Subdivisions (b) and (c) of this rule are suspended from January 1, 2022, to July 1,
31 2023. During that time, the applicable provisions in rule 3.672 govern remote
32 appearances and proceedings in juvenile court. The standards in (b) apply to any
33 appearance or participation in court by telephone, videoconference, or other digital
34 or electronic means authorized by law.

35
36 *(Subd (a) amended effective January 1, 2022.)*

37
38
39 **(b)–(c) * * ***

40
41 *Rule 5.531 amended effective January 1, 2022; adopted effective January 1, 2012; previously*
42 *amended effective January 1, 2021.*

Rule 5.900. Nonminor dependent—preliminary provisions (§§ 224.1(b), 295, 303, 366, 366.3, 388, 391, 607(a))

(a)–(d) * * *

(e) Telephone appearance

Paragraph (1) below is suspended from January 1, 2022, to July 1, 2023. During that period, the juvenile dependency provisions in rule 3.672 apply in its place.

- (1) The person who is the subject of the hearing may appear, at his or her request, by telephone at a hearing to terminate juvenile court jurisdiction held under rule 5.555, a status review hearing under rule 5.903, or a hearing on a request to have juvenile court jurisdiction resumed held under rule 5.906. Rule 5.531 applies to telephone appearances under this paragraph.

(2)–(3) * * *

(Subd (e) amended effective January 1, 2022.)

(f) * * *

Rule 5.900 amended effective January 1, 2022; adopted effective January 1, 2012; previously amended effective January 1, 2014.